Privacy Policy

Last Updated and Effective: September 2, 2025

What is this document?

Privacy policies can be dense and inaccessible. Sometimes you just want your question answered quickly without having to navigate pages of text. With this document, we hope to make that easier. We tried our best to make our Privacy Policy as easy to navigate and understand as possible. If you have any questions while reading it, please don't hesitate to reach out to privacy@betterhelp.com.

For purposes of this Policy and unless otherwise specified, "data" includes information that is linked to one person or household including things like name, email address, phone numbers, device ID, Third Party identifiers, contact information, and communications with Therapists using our digital communication platform (the "Platform") to provide services ("Therapists"). Some jurisdictions might consider this to be "personal data," "personally identifiable information," or "sensitive personal data" in certain circumstances. When you use and access our app or website, you accept and agree to both the Terms and Conditions and this Privacy Policy, including that we'll share certain data with Service Providers.

To the extent any data is considered protected health information (“PHI”) under The Health Insurance Portability and Accountability Act of 1996 (“HIPAA”), the Notice of Privacy Practices (“NPP”) of our associated provider groups will apply and supersede any conflicting practices set forth in this document. The applicable NPP is located here.

When does this document apply to you?

In the United States, we provide two separate and distinct offerings. First, the ability to pay using your health insurance, when appropriate, if the BetterHelp providers are in-network with your health plan ("Insurance Offering"). Second, the ability to get a subscription package of services ("Subscription Offering").

If you are a member under our Insurance Offering ("Insurance Member"), the NPP applies to your PHI and, by using the Platform, you agree that you have read and accepted the NPP. This Privacy Policy will not be applicable to your PHI, which includes therapy data and other data after you login. Please refer to the NPP to understand how your PHI will be handled, your rights and how to exercise them with respect to PHI.

If you are a member of our Subscription Offering ("Subscription Member"), then this Privacy Policy is the controlling document that outlines how we may use data associated with you, and the NPP does not apply.

Will this document be updated?

We may update this Privacy Policy. When we make significant changes to this Policy, we will notify you through our website or app when you log in to your account. We encourage you to periodically review this page for the latest information.

How to navigate this document

This document is broken into seven sections divided by topic. To navigate to a section, reference the list below which provides examples of the types of questions that will be answered in that section. When you find a section that interests you, just click on it and you'll be automatically directed there.

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Section 1

Data Collection and Processing

Do you collect, store, or Process my data?

The categories of data which we Process[1] are listed below. We Process this data to do things like operate the Platform and make sure you are able to use our services effectively. We may also Process data to send you periodic emails or text messages. In some cases, these communications are to help provide services. Other times, if permissible under applicable law, they are to provide marketing communications. You can opt out of receiving texts or marketing communications at any time. Additionally, provided you opt in, we may Process and share some data with Third Parties[2] for advertising purposes. You can find more details in the relevant sections of this Policy.

What specific data are you Processing and why do you collect it?

What data we Process depends on how you're using our website, app, or the Platform and, if you are in the US, whether you are an Insurance Member or Subscription Member. We explain in the section below the specific data we Process and, in the section following this, the business purpose for collecting and Processing this data. You will also see a column that identifies the legal basis for processing the data. We may rely on one or more legal bases for processing.

As highlighted in the table below, we collect and Process “Therapy Data“, which includes health and treatment information that is required to facilitate therapy.

You can find information on how long we store the data we collect and Process these categories of data in the ""How long do you retain my data and how do I request data erasure?"" section of this

Privacy Policy.

Name of category of data	Information that is collected and what it is used for
"Visitor data"	**What is collected:** When you visit the website, app, or Platform, we Process information like the particular pages visited or which features you interacted with, the amount of time on the website or app, site/app/Platform errors, information about the type of device and browser you're using, and IP address. We may Process IP address, hashed email address, External Identifiers and Internal Identifiers (if available based on the settings of your device) and will share the information with Third Parties, if you opt in to Advertising (previously "Targeting cookies") and web beacons. **What it is used for:** • Connecting you with therapy services[3] • Facilitating tools for you and your Therapist[4] • Communicating with you[5] • Monitoring and improving therapy quality[6] • Personalizing your web or app experience[7] • Helping us understand how you use our services, how we can improve our products and services to make them more effective and convenient, and offer you new features[8] • Complying with laws[9] • Protecting your safety and the safety of others[10] • Send opportunities, promotions, news, updates and reminders about our services and your account[11] • Monitor and protect the security of the Platform[15] **Legal basis for processing** • Legitimate Interest • Consent
"Onboarding data"	**What is collected:** To create an account with the Platform, the user first fills out a questionnaire. We Process the information used to complete this questionnaire. **What it is used for:** • Connecting you with therapy services • Monitoring and improve therapy quality • Personalizing your web or app experience • Helping us understand how you use our services, how we can improve our products and services to make them more effective and convenient, and offer you new features • Complying with laws • Protecting your safety and the safety of others • Send opportunities, promotions, news, updates and reminders about our services and your account **Legal basis for processing** • Consent
"Account Data"	**What is collected:** Once a user creates an account with the Platform, we Process data such as the account name the user selects, and other demographic and contact information, such as email, age, phone number, emergency contact details, and whether a user verifies their email address. We may ask a user if they have insurance and, if so, what plan they have. **What it is used for:**

- Facilitating therapy tools for you and your Therapist
- Communicating with you
- Personalizing your web or app experience
- Helping us understand how you use our services, how we can improve our products and services to make them more effective and convenient, and offer you new features
- Complying with laws
- Protecting your safety and the safety of others
- Monitor and protect the security of the Platform

Legal basis for processing
- Performance of Contract
- Legitimate Interest

"User ID"

What is collected:
We assign each user (including Therapists) who create an account a sequentially-generated user ID. User IDs are unique to each account and are required in order to enable the Platform to function.

What it is used for:
- Connecting you with therapy services
- Facilitating therapy tools for you and your Therapist
- Communicating with you
- Monitoring and improving therapy quality
- Personalizing your web or app experience
- Helping us understand how you use our services, how we can improve our products and services to make them more effective and convenient, and offer you new features
- Complying with laws
- Protecting your safety and the safety of others
- Send opportunities, promotions, news, updates and reminders about our services and your account
- Monitor and protect the security of the Platform

Legal basis for processing
- Performance of Contract
- Legitimate Interest

"Transaction Data"

What is collected:
We Process data about payment transactions on the Platform such as whether a user completed payment for our services, signed up for services using a trial offer, canceled or ended a trial, received a discount or financial aid, or received any extensions or refunds. We also process whether a visitor has registered to create an account.

What it is used for:
- Connecting you with therapy services
- Facilitating therapy tools for you and your Therapist
- Communicating with you
- Monitoring and improving therapy quality
- Personalizing your web or app experience
- Helping us understand how you use our services, how we can improve our products and services to make them more effective and convenient, and offer you new features
- Complying with laws
- Protecting your safety and the safety of others
- Send opportunities, promotions, news, updates and reminders about our services and your account

Legal basis for processing
- Performance of Contract
- Legitimate Interest

"Engagement Data"

What is collected:
We Process usage data about how you interact with emails we send and different features when you're logged into the platform. For emails we send, we collect usage data including whether you receive an email, open it, and click any links it contains. When you log onto the Platform, we also collect usage data about activity conducted during that logged in session such as when a user logs in, the login timing, number and length of messages received or sent through the Platform, received or sent message timing, number and duration of live session scheduled or conducted, the number and timing of use of other features such as worksheets, journals, and goals. This category does not include Therapy Data like the content of any messages sent or received by users, the content of any live sessions, or the content of journal entries, worksheets, or goals.

What it is used for:
- Facilitating therapy tools for you and your Therapist
- Communicating with you
- Monitoring and improving therapy quality
- Personalizing your web or app experience
- Helping us understand how you use our services, how we can improve our products and services to make them more effective and convenient, and offer you new features
- Complying with laws
- Protecting your safety and the safety of others
- Send opportunities, promotions, news, updates and reminders about our services and your account

Legal basis for processing
- Legitimate Interest

"Therapy Data"

What is collected:
We Process written communications and related information users share with their Therapist to facilitate the therapy. This includes messages with Therapists, worksheets, and journal entries. Users may also choose to send audio messages which are automatically transcribed. We do not record the video or audio sessions with Therapists, unless you consent to such recording.

What it is used for:
- Facilitating therapy tools for you and your Therapist
- Complying with laws

Legal basis for processing
- Performance of Contract
- Legitimate Interest

"Therapy Quality Data"

What is collected:
We Process client feedback about their Therapist including, ratings and reviews of their Therapist, actions regarding switching Therapists or quitting therapy, and the reason selected by the client. We Process Therapist session availability, session cancellations and no-shows.

What it is used for:
- Connecting you with therapy services
- Facilitating therapy tools for you and your Therapist
- Communicating with you
- Monitoring and improving therapy quality
- Personalizing your web or app experience
- Helping us understand how you use our services, how we can improve our products and services to make them more effective and convenient, and offer you new features
- Send opportunities, promotions, news, updates and reminders about our services and your account

Legal basis for processing
- Legitimate Interest

"Customer Service and Communications Data"	**What is collected:** We Process communications users have with our Customer Service team. **What it is used for:** • Communicating with you • Helping us understand how you use our services, how we can improve our products and services to make them more effective and convenient, and offer you new features • Complying with laws • Protecting your safety and the safety of others **Legal basis for processing** • Performance of Contract • Legitimate Interest
"Therapist Data"	**What is collected:** In order to engage with Therapists who express an interest in working with us (such as individuals who provide information at in-person or online recruitment events), follow up with Therapists who applied to work with us on the status of their applications, to identify, match, credential, re-credential, run checks, issue 1099s and pay Therapists, we process Therapist information such as the Therapist's name, bank account information, gender, date of birth, governmental identification numbers (SSN/FEIN), e-mail address, phone number, address, NPI number (if applicable), license information, CAQH number (if applicable), and areas of interest/expertise/language, education, and job history. Therapists may also separately and outside of this Policy, consent to using facial scans to assist logging them in and verifying their identity. Depending on the country in which you are credentialed, we collect our independent verification of criminal background check. **What it is used for:** • Connecting you with therapy services • Facilitating therapy tools for you and your Therapist • Communicating with you • Personalizing your web or app experience • Helping us understand how you use our services, how we can improve our products and services to make them more effective and convenient, and offer you new features • Complying with laws • Protecting your safety and the safety of others • Send opportunities, promotions, news, updates and reminders about our services and your account • Monitor and protect the security of the Platform **Legal basis for processing** • Legitimate Interest • Performance of Contract • Consent
"BetterHelp Business Data"	**What is collected:** BetterHelp Business is our offering for employers and groups bringing behavioral health services to their organizations. To facilitate these services, we need to have a way to administer benefits by confirming individuals are part of an organization and are therefore eligible to receive BetterHelp services. We also process data from individuals who engage with us and provide their data in a professional capacity on behalf of an organization, such as: • Business owners who request a BetterHelp Business product demonstration; • HR managers responsible for overseeing their company's active BetterHelp Business account ("Account Administrator") • Conference attendees who attend a BetterHelp presentation or event, and provide information for additional outreach from our representatives. Such data includes names, organization email addresses, unique identifiers or

	"IDs" issued by organizations, organization name, and organization size. With your consent, we may record and transcribe BetterHelp Business product demonstrations. **What it is collected for:** • Communicating with you • Helping us understand how you use our services, how we can improve our products and services to make them more effective and convenient, and offer you new features • Complying with laws • Send opportunities, promotions, news, updates and reminders about our services and your account **Legal basis for processing** • Legitimate Interest • Performance of Contract • Consent
"Therapist Engagement Data"	**What is collected:** For Therapists, we process such data as number/times of Therapist logins to the Platform, the number of live sessions conducted by a Therapist, number of messages and words exchanged by a Therapist, number of worksheets shared by a Therapist, and number of journal entries shared with a Therapist **What it is used for:** • Connecting you with therapy services • Facilitating therapy tools for you and your Therapist **Legal basis for processing** • Legitimate Interest • Performance of Contract
"Clinical Health Record"	**What is collected:** We Process "Clinical Health Record" which is a record with the minimum information your therapist would need to identify you and document the services you received. This Record includes your therapist's internal notes, dates you received services, and the following specific subsets of Onboarding, Account, and Therapy data: • "Onboarding data": Onboarding Questionnaire Answers • "Account data": Account name the user selects, phone number (if one is provided), email address, emergency contact details • "Therapy data": Dates of service, messages with therapist, worksheets, journal entries that are shared with therapist, therapist's internal notes **Legal basis for processing** • Performance of Contract • Legitimate Interest

If you're a Therapist on our Platform, or being recruited to join us, in addition to the above, we may Process Therapist Data, Therapy Quality Data, Therapist Engagement Data, User ID, Onboarding Data, Account Registration Data to:

- Assist in the Therapist recruitment process and onboard you to the Platform;
- Operate the Platform, match clients to you based on your preferences, and facilitate the communication between you and your clients;
- Verify your identity and secure your account;
- Run background checks and other screening required for credentialing and re-credentialing purposes;
- To pay you and comply with all relevant tax laws;

- Provide you quality statistics, feedback from our BetterHelp Clinical Operations team, and feedback from clients.
- Offer you information about new features, opportunities, perks and other incentives.
- Send you email, calls or SMS reminders, notifications & updates about your application, profile or account.

Profile Boost Program. The Profile Boost Program is an optional feature which shares the client-facing profile of BetterHelp Therapists with Google Search Ads and Directory partner websites, for the purpose of driving users to your profile and bringing you new clients. This Program is optional, and Therapists may opt-out at any time.
Additional information about the Profile Boost Program, and the self-serve opt-out feature, is available on the Expertise and Preferences page of your Therapist Dashboard once you sign-up.
The legal basis for processing the above data for Therapists on our Platform (or for the purposes of recruiting them) are legitimate interest, performance of a contract, and consent.

In addition to processing, we also share some data with Service Providers[12] in order for us to operate the Platform and to perform necessary website and application functions. Additionally, when you opt into sharing, we share certain data with Third Parties. For more information please see the section: "What are the purposes for sharing my data?"

If you opt in to Advertising cookies and web beacons (previously "Targeting cookies") some Visitor Data, excluding activity when you're logged in and have started therapy and/or PHI, may be shared for advertising purposes. To learn more, see section, "Are you using my data for advertising?".

Do you Process location data?

We process your IP address to determine your rough location so that we can personalize the platform for you. For example, we show you relevant information about our service that applies to visitors from your country.

We also utilize your rough location to improve your user experience when using our platform. For example we auto populate your state (if applicable) and country when you are completing our onboarding questionnaire.

We do not request or process exact location information such as information provided by your phone via GPS.

We Process your address information when you provide it as part of your emergency contact information when you start therapy on the Platform. Your contact information is required to comply with therapy regulations and ethical code. It can be used, for example, in case your Therapist believes you are in immediate danger. When you are filing out this field, we may process your rough location to provide autocomplete suggestions for your convenience.

Rough location using your IP address is also Processed by the ReCAPTCHA security API tool we use. ReCAPTCHA is a Service Provider we use to identify potentially malicious actors trying to access our site. Here is the ReCAPTCHA Privacy Policy and Terms of Service.

To learn about the additional purposes for which we Process IP addresses, please see:

- Why do you collect and Process my data?
- Are you using my data for advertising?
- Additional Privacy Notice for California Residents

How do we use Artificial Intelligence?

We use Artificial Intelligence (AI) and Natural Language Understanding (NLU) algorithms to support and develop features to provide you services and improve the quality of the services. Our processing of data may include some automated and some human (or manual) methods of processing. The automated processing typically includes features aimed at completing manual, repetitive tasks more efficiently. For example, we may use AI features to detect security risks, synthesize information for customer service agents, and help therapists manage and document sessions more effectively. We expect these improvements to ultimately improve our services and experiences for Members and Therapists. To help ensure these tools remain fair and accurate, as well as protect the privacy of our Members and Therapists, we either thoroughly review a model or build it internally and, unless you agree otherwise, do not use any Therapy Data, such as sessions data, journal entries, messages, worksheets, or any other type of private communication you have with your Therapist in a session to train an AI or NLU model.

Section 2

Data Sharing

What are the purposes for sharing my data?

Here's some more information about the purposes for which we share your data:

- Your data may be shared to comply with applicable laws. For example, a court might subpoena information from us where we would be required to share certain information requested in the subpoena. This is not unique to BetterHelp and is applicable to in-person therapy as well. Keep in mind that, as a general rule, we defer to your chosen Therapist to decide to produce (or not produce) any psychotherapy notes or messages you have had with them. Many jurisdictions have strict rules governing Therapist/client relationships and the confidentiality requirements associated with that. We encourage you to discuss with your Therapist early on if you have concerns about their disclosure obligations.
- Occasionally, your data may be handled by a select number of employees who are part of our parent company for support services. These employees are under strict duties of confidentiality. For example, a paralegal at our parent company may receive subpoenas or legal correspondence on behalf of Members or former Members and make sure they are provided to BetterHelp's Legal team to address.
- We may share certain data with Service Providers[12] that provide limited services that help us operate the Platform. Examples include:
  - Data hosting and storage providers: For example, cloud hosting providers such as Amazon Web Services (AWS).

- Technology Service Providers: For example, we sometimes integrate tools into our Platform which give our Platform more functionality, like technology that helps us provide live audio, video and group meetings.
- Customer Service Providers: For example, we use a tool that helps keep track of requests and questions from our Members, visitors and Therapists in a secure way. Email management and communication Service Providers.
- Email management and communication Service Providers: For example, we may use a tool that makes reaching out to you easier for us and more convenient for you.
- Marketing and advertising Service Providers: For example, we may partner with an agency to run a marketing campaign or to help us better understand how to run our own campaigns to reach more people who may be interested in starting therapy. Remember that Service Providers can only legally use data at our direction - no other person or company can authorize how they use it and they cannot disclose data that is individually identifiable to any other person or company, other than to us or the Service Providers' own subcontractors provided that they're bound to data Processing terms that are no less restrictive than the Service Provider's terms.
- Billing and payment processing Service Providers: For example, we use Stripe to help process payments in a secure way. Stripe also assists us in paying Therapists and issuing tax documents to them. For this purpose, we may share email addresses of Therapists with Stripe and other data that is needed to pay Therapists such as a Therapist's name and tax ID.
- Reporting and analytics Service Providers: For example, we might use a service to help us keep track of which pages and features are most used on our site.
- Advisors and lawyers: To assist with business matters.
- We may share some of your data with Service Providers to ensure the safety and security of the Platform and that of our users.

- If you're a Therapist on our Platform, or being recruited to join us, in addition to the above, we may share certain data with Therapist recruiters in order to facilitate, monitor, and track the recruitment process. If you are a Therapist on our Platform, we may also share certain data such as information you volunteer in or through the Platform including, but not limited to, your name, photograph, NPI (if applicable), information about your credentials, experience, specialties and qualifications with insurance payors or health plans for the purposes of contracting with them. We may also share this information with vendors that accreditate/certify our therapist credentialing processes and otherwise help us streamline the credentialing process.
- For Members who receive services in connection with an employer, organization, or other business partner, we may share group-level usage data, which cannot be directly connected to you, with your organization. In the instance of Members who receive services through an Employee Assistance Program ("EAP"), your EAP will provide notice for any individual-level data which is shared with the EAP, if you are utilizing one and have provided them with consent for us to do so. If you have any questions on how your data will be used by or shared with your EAP, please reach out to your EAP directly.
- We may share some of your data in connection with an asset sale, merger or bankruptcy.

For Insurance Members: If you are an Insurance Member, your PHI will only be shared for the purposes outlined in the NPP in accordance with HIPAA.

Note that if you make any information publicly available on the Platform, such as with a public post, anyone may see and use such information.

If you opt in to "Analytics (previously "Performance cookies")", we may use analytics cookies and other tracking technologies to share your data with trusted Service Providers that assist us to Process[1] data for activities including but not limited to analyzing traffic sources, visits, and site interactions. This analysis helps us to improve our products and services.

If you opt in to "Advertising (previously "Targeting cookies")" information regarding your activity on our websites, excluding activity when you're logged in and have started therapy, may be shared for advertising purposes. For more information about your specific settings, see here. To learn more, see section: "Are you using my data for advertising?"

How do you use my data to comply with the law?

When required by law, we cooperate with government agencies. This is not unique to BetterHelp and is applicable to in-person therapy as well. For example, a court might subpoena information from us where we would be required to share certain information requested in the subpoena. Keep in mind that, as a general rule, we defer to your chosen Therapist to decide to produce (or not produce) any psychotherapy notes or messages you have had with them. Many jurisdictions have strict rules governing Therapist/client relationships and the confidentiality requirements associated with that. We encourage you to discuss with your Therapist early on if you have concerns about their disclosure obligations.

You should also be aware that Therapists may be obliged to disclose information to authorities to meet professional and legal responsibilities. Specifically, some laws require mental health professionals to disclose information and/or take action for: (a) reported or suspected abuse; (b) serious suicidal potential; (c) threatened harm; and (d) court-ordered treatment. You should speak with your Therapist if you have concerns about this.

Do you sell my data?

We aren't paid by anyone for any data. However, in California, the laws define "sale" broadly to include the sharing of personal information in exchange for anything of value. If you opt in to our use of Advertising cookies and web beacons, this use may be considered a "sale" of personal information under that specific California law. For specific information on your data rights as a resident of California, see the additional notice for California residents.

Are you using my data for advertising?

In order to reach people who may be looking for mental health support, we advertise on some Third Party[2] web properties such as Third Party websites and apps. In order to minimize advertising costs related to this process and downstream costs to you, we strive to deliver ads that are relevant, interesting, and personal.

Therefore, if you opt in to Advertising cookies and web beacons, some Visitor Data, excluding activity when you're logged in and have started therapy and PHI, may be shared for advertising purposes. As a result, you may see ads for our services on some Third Party websites.

If you use the App and have "Allowed" app to track using IOS or have opted into Advertising Cookies on Android, some data such as your mobile device identifier (IDFA and IDFV for iOS, and Android Advertising ID for Android) and data about how you use the App which is collected by our

Service Provider Google (specifically GA4) will be used to make our Google advertising more effective. This happens through an integration we have enabled between GA4 and Google Ads. If you do not want to enable this, for Android users, you can navigate to "Sharing Settings" in the App and opt out of advertising. For IOS users, you can "Ask App Not to Track" when you download the app or, at a later time, go to your device's privacy settings to see a list of apps that requested to track your activity (Go to Settings > Privacy & Security* > Tracking). From there, you can tap to turn off or turn on permission to track for the BetterHelp app.

Even if you do opt in, we still do not engage in "retargeting" advertising. Retargeting advertising is a type of advertising whereby advertisers leverage the fact that you viewed a page or took an action on their site to advertise to you again on third party properties in the hope that you will see the ad and return to their site.

To be clear, we don't share any data or information you share with your Therapist with any Third Party advertisers. Even if you opt in to Advertising cookies and web beacons, we still don't share information with Third Party advertisers like Member names, phone numbers, clinician diagnosis, questionnaires answers, sessions data, journal entries, messages, worksheets, or any other type of private communication you have with your Therapist on the Platform.

As described further above at SECTION 2 Data Sharing, we may also partner with some Service Providers to assist in marketing campaigns. Remember that in addition to needing a series of rigorous security standards (as further detailed here), Service Providers can only legally use data at our direction - no other person or company can authorize how they use it and they cannot disclose data that is individually identifiable to any other person or company, other than to us or the Service Providers' own subcontractors provided that they're bound to data Processing terms that are no less restrictive than the Service Provider's terms.

For additional information regarding Third Parties that may share data with, please reference our Third Party Partners Disclosure List.

For Insurance Members: If you are an Insurance Member, then please refer to the NPP.

Section 3

Data Retention, Erasure, and Exporting

How long do you retain my data and how do I request data erasure?

BetterHelp is committed to ensuring that all applicable Member data is retained only for the amount of time required to provide relevant products and services and in accordance with relevant legal requirements.

Certain categories of data are retained for a period of time after you cancel your Membership or your Membership becomes inactive or, under the Insurance Offering, you cease being an Insurance Member. These categories of data are retained to allow for a seamless reactivation in the event you

begin using our services again and allow Therapists to reference historical information. Retaining this data is also needed to ensure our products and services function.

In addition to the data retention schedule outlined below, BetterHelp maintains a process for all Members (regardless of where they live) to receive and process, without undue delay, requests to erase or access their data.

The following sections describe both how long a Member can expect their data to be retained with respect to specific account information as well as how to request data erasure and access. In this Policy, data erasure is defined as the permanent removal or obfuscation of identifiable data (See "What is this Privacy Policy") so that it is no longer accessible by anyone.

Retention Policy

BetterHelp's data retention policies are based upon what data is being Processed[1], whether or not the Member has participated in therapy, and if the Member proactively requested data erasure or if the erasure is triggered due to Platform inactivity

I am a Member who...	How long your data is retained
Did not start therapy Did not request data erasure	Your data is retained for 3 years after your last login date and is then erased.
Did start therapy Did not request data erasure	Your data is retained for 10 years after your last login date and is then erased.
Did not start therapy Did request data erasure	Your data is erased within 24 hours of the erasure request.
Did start therapy Did request data erasure	Your information which is classified as Clinical Health Record (See "What Specific Data are you Processing"), Communications (e.g. record of Member complaints or deletion requests), or disclosures of PII to Third Parties[2] is erased after 10 years. All other personal identifiable information in the following categories is erased within 24 hours of the erasure request: Visitor Data; Onboarding Data; Account Data; User ID; Transaction Data; Member Engagement Data; Therapy Data; Customer Service and Communications Data.

Exercising Your Data Protection Rights:

As stated, you have certain rights under data protection laws, including the right to request that we erase personal data we hold about you, and the right to request a copy of it. The following sections describe how you can exercise those rights.

Requesting Data Erasure:

To request data erasure, please log in to your account and go to Menu > My Account (or Account

Settings) > My Personal Information, where you will see a link to request complete erasure of your account. Click that and follow the instructions to begin the data erasure process. You will receive a confirmation email from us within 24 hours of your request.

If you do not have access to your account or are having trouble with this method, you can directly contact Member Success at contact@betterhelp.com and they will assist you with the process. Additionally, if, under applicable data protection laws, you have the right to request that data we hold about you be edited or rectified, you may make this request by contacting Member Success. You can expect to receive an email confirming receipt of your request within 24 hours.

Additionally you can visit our opt out instructions page to request erasure or to opt out of previous settings you have opted into.

You may reach out to us at DPO@betterhelp.com if you need additional help. We will only comply with a request for the erasure of your data if we can verify your identity. There is usually no charge. In exceptional circumstances, we may charge a reasonable fee after discussing the fee with you.

If you reach out to either Member Success or DPO@betterhelp.com, we have specific requirements that must be met in order for us to process your data erasure request.

Requirements:

- Only you or your authorized representative may make a request on your behalf. You may also make a request on behalf of your minor child depending on the applicable laws.
- You must provide sufficient information that allows us to reasonably verify your identity or status as an authorized representative.
- You must provide details that allow us to understand, evaluate, and respond to your request.

In some circumstances, legal or regulatory requirements limit our ability to honor erasure requests. As such, we may decline requests for erasure if the information is:

- Subject to a litigation hold or legal request to preserve it.
- Necessary to comply with laws and regulations and to maintain business integrity.
  - Clinical Health Record (described above) falls under this exemption.

Additionally, compliance obligations require us to retain records documenting certain interactions you have with us related to your Membership. As such, we cannot honor erasure requests for information contained in records of:

- Communications about complaints and erasure or access requests.
- Disclosures of personal data to Third Parties.

If we don't intend to comply with a request, then we will tell you why this is the case, and outline how we weighed your rights and freedoms against our legal obligations. In such instances, any information retained will only be used for purposes contemplated under the legally recognized exemption.

Requesting a copy of my data

To receive a summary copy of your data, please log in to your account and go to Menu > My Account (or Account settings) > My Personal information, where you will see an option to request a

copy of your data. The data you will receive as part of this request includes the contact information that you input on the site, questionnaire answers, worksheet entries, emergency contact information, messages you sent to your Therapist, journal entries that you created, and other personal information.

Additional data which we maintain includes email interactions with our help desk, which is stored on your email system. You may also request this information by writing to DPO@betterhelp.com. As with data erasure, we are not always able to respect your request for data access. For more information on why this may be and how the situation will be handled, please reference the previous section.

Do we keep any data after we fulfil a data-subject request?

Yes. We keep a limited log of the request, such as your contact details (such as your email address), the identity-verification documents you provided (if applicable), the steps we took to respond, and a copy of our response.
We retain this information for 10 years for legitimate business or legal reasons, so that we can demonstrate compliance with US and international data protection laws and legal obligations, resolve any follow-up queries you may have, and defend legal claims.

BetterHelp Business Retention and Erasure

BetterHelp Business: Retention Policy

We automatically delete BetterHelp Business Data about an individual three years after either the end of their organization's relationship with BetterHelp, or the initial collection, if no such relationship existed. (e.g., an individual provided information for a BetterHelp Business demo, but never purchased the product).

BetterHelp Business: Requesting Data Erasure...

To manually request the deletion of your BetterHelp Business data before the timeframes described above, please select the "Update Email Preferences" link located in the footer of the BetterHelp Business webpage, as well as the banner at the bottom of any BetterHelp Business email we send. On that linked webpage, please check the box next to "Delete my Data."

Note: BetterHelp Business Data is not associated with BetterHelp Member Data. As such, if we hold both BetterHelp Member Data and BetterHelp Business Data about you, then the retention schedules and processes outlined above apply only to the information we hold about you within those respective data categories.

- For example, an Account Administrator who also uses BetterHelp as a Member would need to follow the process described in "Requesting Data Erasure..." to request the erasure of their Member data, and the process described in "BetterHelp Business: Requesting Data Erasure" to request the erasure of their BetterHelp Business Data.

Section 4

Security and Anonymity

How do you keep my data secure?

We apply industry standards and strive to apply best practices to prevent any unauthorized access and disclosure. Internet-based services carry inherent security risks, but our systems infrastructure, encryption technology, operation and processes are all designed, built, and maintained with your security and privacy in mind. Our Platform is certified by HITRUST - one of the most recognized data security certification programs in the health industry.

BetterHelp has an experienced team of data security professionals whose job it is to make sure we use secure technology to protect your data. We have an Information Security team who test internal security at BetterHelp to try and anticipate threat actors and act defensively to build processes and infrastructure to prevent incidents and attacks. We have numerous robust security practices such as:

- All messages between a Member and their Therapist are secure and have 256-bit encryption.
- Our servers are distributed across multiple Tier 3 AWS Data Centers for optimal security and protection.
- Our browsing encryption system (SSL) follows modern best practices.
- Our databases are encrypted and scrambled rendering them useless in the unlikely event that they are stolen or inappropriately retrieved.
- We have robust monitoring and alerting systems and procedures in place that include both automated systems and humans. For example, there are always security personnel active in our 24/7 rotation.

For your own security, keep the following in mind:

- Phishing: This is a type of online identity theft or account hacking. We will never request your login information or credit card information in any non-secure or unsolicited communication. You should always be diligent when you are asked to provide your account information and make sure it is in our secure system.
- External links: Our Platform may contain links to an external website or service. We do not control external websites, and do not have control over their privacy policies and terms of use. The fact that we link to a website is not an endorsement, authorization, or representation of our affiliation with that external party or of their privacy and security policies or practices.

Can I sign up for BetterHelp and remain anonymous?

When you sign up for an account on BetterHelp under the Subscription Offering, we do not ask you for your full name. You may pick any name or “nickname” which will identify you in the system. You will need to provide an email address so that we can verify your account, and so we can communicate with you. You can choose an email that does not include your name (including if you are coming to us from an employer, organization, or other business partner and do not want to use your organization's email address), but you should be aware that in some jurisdictions emails may be considered “personal data,” “personally identifiable information,” or “sensitive personal data” in certain circumstances. When you decide to start the therapy process, we'll ask you for your contact information for emergency situations such as if your Therapist thinks that you or someone else is in immediate danger. Your Therapist may request additional specific information about you as required by their license or other accreditation guidelines.

Even though we try to limit the kinds of information you must provide to us as discussed above, it is very difficult to be truly “anonymous” when you use any app or the internet. Read more about what data we Process[1] and why here:

- What specific data are you Processing?
- Do you Process location data?
- Why do you collect and Process my data?
- What are you using cookies and web beacons for?

If you're interested in further limiting what data is Processed, visit our opt-out instructions page to opt-out of tracking via cookies or web beacons, or for instructions on how to remove previously set cookies.

Who can see the interactions I have with my Therapist?

You and your Therapist are able to see the messages you send, the worksheets you submit. Your Therapist can also see the journal entries you submit if you opt in to sharing journal entries.

A licensed Therapist who is employed as part of the BetterHelp Clinical Operations Team may review correspondence with your Therapist for quality assurance purposes. For example, if you raise a concern about your Therapist, or if we have concerns about a specific Therapist's clinical care.

In addition, our internal Trust and Safety or Legal teams may review correspondence for specific accounts if we have a reason to believe that there is a security, legal, or fraud issue occurring with that specific account.

Messages with your Therapist are not shared with any Third Party[2], and your live sessions are not recorded, unless you expressly consent. We also do not share when you send a message, or have a session with your Therapist, with any Third Party.

How do you treat data from children?

We don't knowingly collect or solicit any data or information from anyone under the age of thirteen (13) or knowingly allow such persons to become our users. The Platform is not directed at and not intended to be used by children under the age of thirteen (13). If you're aware that we have collected personal information from a child under age thirteen (13), please let us know by contacting us, and we'll delete that information.

Section 5

Cookies and Web Beacons

What is a cookie or web beacon?

A "cookie" is a small data file that is accessible within a folder on a computer, and it is used for record-keeping purposes. Cookies are used to enhance performance of the Platform, personalize

your experience and can be used for Third Party[2] tracking (as described above). For example, cookies may be used to help you quickly log into certain platforms and websites without having to enter your credentials every time.

A "web beacon" or "pixel" is a tiny and sometimes invisible image or embedded code, placed on a web page or email that can report your visit or use to a Third Party (as described above). In general, these tools can be used to monitor the activity of users for the purpose of web analytics, advertising optimization, or page tagging.

What are you using cookies and web beacons for?

We use our own cookies and web beacons to deliver a faster and safer experience, to monitor and analyze usage, to comply with laws, and for advertising purposes. To read more about the kinds cookies we use and their purposes, to update your settings, or to opt out, click here.

How do I opt out of cookies, web beacons, and other tracking technology?

Please visit our opt-out instructions page to opt-out of tracking via cookies or web beacons, or for instructions on how to remove previously set cookies.

How can I stop receiving direct marketing emails from you?

You can always opt out of receiving marketing emails. In order to opt out, you can select the unsubscribe link located at the bottom of the relevant email communication.

Section 6

Additional privacy notices for California, UK, GDPR, and non-US/UK/EU residents

Additional Privacy Notice for California Residents

This **Privacy Notice for California Residents** supplements the Privacy Policy to comply with the California Consumer Privacy Act of 2018 ("CCPA") and the California Privacy Rights Act ("CPRA") of 2020.

The CCPA and the CPRA are California laws that provide its residents with certain rights over information about them, including notice about the categories of personal information we have collected from them in the preceding twelve (12) months and the purposes for which the information is used or disclosed, and correction of personal information.

The following Sections outline the data that is Processed[1] by us, as well as the purpose for collection, and the categories of sources of such information:

- What specific data are you Processing?
- Do you Process location data?

- Why do you collect and Process my data?
- What are you using cookies and web beacons for?

The data referenced at those links may fall in certain defined categories under the CCPA and CPRA. Accordingly, we may have collected:

- Identifiers;
- Personal information categories listed in the California Customer Records statute (Cal. Civ. Code § 1798.80(e));
- Protected classification characteristics under California or federal law;
- Commercial information;
- Biometric information;
- Internet or other similar network activity;
- Geolocation data;
- Sensory data;
- Sensitive Personal Information;
- Professional or employment-related information; and
- Non-public education information (per the Family Educational Rights and Privacy Act (20 U.S.C. Section 1232g, 34 C.F.R. Part 99)).

The information that we have disclosed in the past 12 months and the recipients of the information are described above, in the section titled "What are the purposes for sharing my data" The information that we may have shared in the past 12 months falls into the following personal information categories under the CCPA and CPRA:

- Identifiers;
- Personal information categories listed in the California Customer Records statute (Cal. Civ. Code § 1798.80(e));
- Protected classification characteristics under California or federal law;
- Commercial information;
- Internet or other similar network activity;
- Geolocation data;
- Sensory data;
- Sensitive Personal Information;
- Professional or employment-related information; and
- Non-public education information (per the Family Educational Rights and Privacy Act (20 U.S.C. Section 1232g, 34 C.F.R. Part 99)).

As noted in the Section titled "Do you sell my data?", our "sale" of information (including sale of information about consumers under the age of 16) consists of the disclosure of your information for targeted advertising purposes, and we aren't paid by any external or Third Party[2] for any data. The information that we may have “sold” (for purposes of the CCPA and CPRA) in the past 12 months falls into the following personal information categories under the CCPA and CPRA:

- Identifiers;
- Commercial information; and
- Internet or other similar network activity;

Do I have the right to know what information you have about me?

Yes, as a California resident you can request certain information about what we have Processed over the past 12 months. Once we receive and verify your consumer request, we can provide:

- The categories of personal information we collected about you.

- The categories of sources for the personal information we collected about you.
- Our business or commercial purpose for collecting that personal information.
- The categories of Third Parties with whom we shared that personal information.
- The specific pieces of personal information we collected about you.
- Whether we disclosed your personal information for a business purpose and the personal information categories that each category of recipient obtained.

We will verify your identity by matching the information you provide with information that we maintain about you or via biometrics (specifically, FaceID via iOS). You also have the right to request that we correct personal information about you if it is found to be inaccurate. To make such a request, please send an email to DPO@betterhelp.com.

Can I "opt out" or request that you delete my information?

Yes, you can request that we delete your data as described in the section of this Policy called: "How long do you retain my data and how do I request data erasure?" Once your request is received and verified by matching the information you provide with information that we maintain about you or via biometrics, we'll move forward with the Process of deleting your information in line with our legal requirements and Retention Policy. We cannot fulfill a deletion request and need to retain your information if the data is necessary to:

- Provide you services, take actions reasonably anticipated within the context of our ongoing business relationship, or otherwise perform our contract with you.
- Detect security incidents, protect against malicious, deceptive, fraudulent, or illegal activity, or prosecute those responsible for such activities.
- Debug products to identify and repair errors that impair existing intended functionality.
- Exercise free speech, ensure the right of another consumer to exercise their free speech rights, or exercise another right provided for by law.
- Comply with applicable laws, including but not limited to, the California Electronic Communications Privacy Act (Cal. Penal Code § 1546 seq.) and information covered by the California Confidentiality of Medical Information Act.
- Engage in public or peer-reviewed scientific, historical, or statistical research in the public interest that adheres to all other applicable ethics and privacy laws, when the information's deletion may likely render impossible or seriously impair the research's achievement, if you previously provided informed consent.
- Make other internal and lawful uses of that information that are compatible with the context in which you provided it.

As noted above, you do not need to opt in to the "sale" of personal information about you by withdrawing your consent to accept cookies used for advertising here. Our websites are also designed to implement a do-not-sell privacy preference.

Other California privacy rights

California's "Shine the Light" law (Civil Code Section § 1798.83) permits California residents to request certain information regarding our disclosure of personal information to Third Parties for direct marketing purposes. To make such a request, please send an email to DPO@betterhelp.com.

General Data Protection Regulation (GDPR) and UK General Data Protection Regulation Notice

This section provides additional information about our Policy relevant to you if you are from the European Economic Area (the EEA), United Kingdom, and Switzerland (together "European Area Countries"). It supplements and should be read in conjunction with the rest of the Policy. Under the European Area Countries' privacy laws, we are the Controller with respect to your data.

What are my rights and choices under European Area Countries laws?

European Area Country residents have specific rights regarding their data. This section describes your rights if you are resident in the European Area Countries and explains how to exercise those rights.

- Subject access request: See further how to exercise this right here
- Right to rectification: If the data we hold about you is inaccurate, you may request rectification. The data will be checked, and, where appropriate, inaccuracies will be rectified. Exercise this right by emailing Member Success at contact@betterhelp.com and they will assist you with the process.
- Right to erasure: In certain circumstances, you may be entitled to ask us to erase your data. See further how to exercise this right here
- Right to data portability: In certain circumstances, you may wish to move, copy, or transfer the electronic data that we hold about you to another organization. See further how to exercise that right here.
- Right to object: You may object to your data being used for direct marketing. You may object to the continued use of your data in any circumstances where we rely upon consent as the legal basis for Processing it. Where we rely upon legitimate interests as the legal basis for Processing your data, you may object to us continuing to Process your data, but you must give us specific reasons for objecting. We will consider the reasons you provide, but if we consider that there are compelling legitimate grounds for us to continue to Process your data, we may continue to do so. In that event, we will let you know the reasons for our decision. In some instances, objecting to certain Processing may impact our ability to provide you with services.
- Rights related to automated decision-making including profiling: We use limited data to operate the Platform and to carry out certain profiling activities to support and grow our business. When doing so, we rely upon our legitimate interests as the lawful basis for Processing your data, and you may exercise the above rights if you do not wish us to Process your data in this way.

To exercise the rights in relation to your data set out in this section, please contact us at DPO@betterhelp.com.

Is my data transferred internationally?

We transfer data from the EU to the U.S because our servers are located in the US. This transfer is conducted on a legal basis to ensure the protection of your data and compliance with applicable data protection laws. The legal basis for this transfer is the EU-U.S. Data Privacy Framework (DPF), which has been recognized by the European Commission as providing adequate protection for personal data transferred to participating US companies. Our company is certified under this framework, ensuring that your personal data is subject to rigorous protection standards when transferred to and processed in the US. To learn more about the DPF click here.

Additionally, we may transfer your data to organizations based in countries that have not been

granted an adequacy decision under the General Data Protection Regulation. Where data is transferred to such countries, we shall ensure that appropriate safeguards are used to do that (such as by using standard contractual clauses with those vendors) or specific derogations have been established (for example where the data transfer is necessary in order to fulfill a contract between us and yourself, where we have received your specific consent after having made you aware of any risks involved, etc).

You can contact our Data Protection Officer with questions, about this Policy, or about your data by writing to:

Attn: BetterHelp UK: Data Protection Officer
Ametros Group Ltd
Lakeside Offices,
Thorn Business Park
Rotherwas Industrial Estate
Hereford, Herefordshire
England
HR3 5QW
0330 223 2246
dpo@ametrosgroup.com
www.ametrosgroup.com

Attn: BetterHelp EU: Data Protection Officer
Ametros Ltd
Unit 3D
North Point House
North Point Business Park
New Mallow Road, Cork
Ireland
gdpr@ametrosgroup.com
www.ametrosgroup.com

While we'll always work with you to resolve any concerns you have about the use of your data, under GDPR you have the right to lodge a complaint with the supervisory authority in your country of residence if you have any concerns about our use of your personal information.

Additional Privacy Notice for non-US, non-UK, and non-EU residents

As a part of our standard business practices, data is transferred outside of many visitors' countries of residence and predominantly used, accessed and processed within the U.S. Fortunately, given the robust and rigorous nature of privacy laws in the US, UK, and EU with which we comply, BetterHelp considers that this has the effect of protecting user information in a way that, overall, is at least substantially similar or in many ways exceeds non-US data privacy legal requirements. BetterHelp is certified under the EU-U.S. Data Privacy Framework (DPF) which has been recognized by the European Commission as providing adequate protection for personal data transferred to participating US companies. To learn more about the DPF click here. To the extent

we contract with vendors who are outside of the U.S, we ensure that specific safeguards have been established to protect that data.

Data Privacy Framework Compliance

BetterHelp complies with the EU-U.S. Data Privacy Framework ("EU-U.S. DPF"), the UK Extension to the EU-U.S. DPF, and the Swiss-U.S. Data Privacy Framework ("Swiss-U.S. DPF") as set forth by the U.S. Department of Commerce (collectively "the Data Privacy Framework").

BetterHelp has certified to the U.S. Department of Commerce that it adheres to the EU-US DPF Principles with regard to the processing of Personal Data received from the European Union, and the United Kingdom (and Gibraltar) and to the Swiss-US DPF Principles with regard to the processing of Personal Data received from Switzerland. If there is any conflict between this Privacy Policy and the DPF Principles, the DPF Principles shall govern. To learn more about the Data Privacy Framework, and to view our certification, please visit https://www.dataprivacyframework.gov/

If you are located in the EU, UK or Switzerland, you have the right to request access to the Personal Data that we hold about you and request that we correct, amend or delete your Personal Data if it is inaccurate or processed in violation of the DPF Principles. We will give you an opportunity to opt out where Personal Data we control about you is to be disclosed to an independent third party or used for a purpose that is materially different from those set out in this Privacy Policy. If you would like to exercise any of your rights, please contact us via the details provided below.

In compliance with the DPF Principles, BetterHelp commits to resolve DPF Principles-related complaints about our collection and use of your Personal Data. We will investigate and attempt to resolve any DPF Principles-related complaints within 45 days. EU, UK and Swiss individuals with inquiries or complaints regarding our handling of Personal Data received in reliance on the DPF Principles should first contact BetterHelp at DPO@betterhelp.com

BetterHelp is also subject to the enforcement, and sanctioning powers of the FTC and will comply with the applicable Data Protection Authorities (DPAs) in regard to BetterHelp's processing of personal data that we receive from the EU, or UK, and Switzerland.

- Contact details for EU DPAs can be found at: http://ec.europa.eu/justice/data-protection/bodies/authorities/index_en.htm
- Contact details for the UK Information Commissioner's Office can be found at: http://ico.org.uk/global/contact-us
- Contact details for the Swiss Federal Data Protection and Information Commissioner can be found at: https://www.edoeb.admin.ch/edoeb/en/home/deredoeb/kontakt.html

BetterHelp commits to resolving complaints about our collection, use or handling of personal data transferred to the U.S pursuant to DPF principles.

Under certain conditions, more fully described on the DPF website, you may be entitled to invoke binding arbitration when other dispute resolution procedures have been exhausted. For more information on binding arbitration, see the Data Privacy Framework Program website located at http://dataprivacyframework.gov/

In the context of an onward transfer, BetterHelp is responsible for the processing of Personal Data it receives under the DPF Principles and subsequently transfers to a third party acting as an agent on our behalf. BetterHelp shall remain liable under the DPF Principles if our agent processes your Personal Data in a manner inconsistent with the DPF Principles, unless BetterHelp is not

responsible for the event giving rise to the damage.

Please note that under certain circumstances, we may be required to disclose your Personal Data in response to lawful requests by public authorities, including to meet national security or law enforcement requirements.

If you are in a crisis or any other person may be in danger - don't use this site.
These resources can provide you with immediate help.

We process personally identifiable information ("PII") and personal health information to conduct our business and provide you with effective service as described in our Privacy Policy. Some data processing and sharing is required for our product to function and cannot be disabled. If you click 'I Agree', we may also share PII with third party advertising partners to deliver more relevant ads and with analytics partners to improve our services. To learn about who we share your data with and why or to opt out, go to Sharing Settings.

Sharing Settings I Agree